

25NNCV07089 25NNCV07089

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-06-26

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BUR%2CB%2C06%2F26%2F2026

Source SHA-256: 8ee5f6729cc0dd955b9e43b08ec6637b6a4495f358bd72ceffb30ff9454bbe30

Case Number: 25NNCV07089 Hearing Date: June 26, 2026 Dept: B

Hon. Lee S. Arian, Dept B

MOTION FOR JUDGMENT ON THE PLEADINGS

Hearing Date: 06/26/26

CASE NO./NAME: 25NNCV07089/WANG v. BMW OF NORTH
AMERICA, LLC

Moving Party: Defendant

BMW OF NORTH AMERICA, LLC

Responding Party: Plaintiff KEHAN WANG

Notice: Sufficient

Ruling: GRANT

with 20 days leave to amend

BACKGROUND

This is a Song-Beverly Act (lemon law) action. On October 6, 2025, Plaintiff filed a Complaint against Defendant, alleging breach of warranty and violations under the Song-Beverly Act. Defendant now moves for judgment on the pleadings. Plaintiff opposes.

REQUEST FOR JUDICIAL NOTICE

Defendant requests judicial notice of Exhibit 1:

Retail Installment Sales Contract – Simple Finance Charge (With Arbitration Provision) (“RISC”). The request is granted. (Evid. Code, § 452, subd. (h).)

LEGAL

STANDARD

A defendant may move for judgment on the pleadings on the grounds that: (1) the court has no jurisdiction of the subject of the cause of action alleged in the complaint; or (2) the complaint does not state facts sufficient to constitute a cause of action against that defendant. (Code Civ. Proc. § 438, subd. (c)(1)(B).) ۞۞۞

A motion for judgment on the pleadings challenges the legal sufficiency of a pleading’s allegations, not their veracity. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) Thus, a motion for judgment on the pleadings is the functional equivalent of a general demurrer. (Lance Camper Mfg. Corp. v. Republic Indemnity Co. of Am. (1996) 44 Cal.App.4th 194, 198; see also Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999 [“A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed. Presentation of extrinsic evidence is therefore not proper on a motion for judgment on the pleadings.”].) ۞۞۞

The standard for ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Bezirdjian v. O’Reilly (2010) 183 Cal.App.4th 316, 321-322 [citing Schabarum v. California Legislature (1998) 60 Cal.App.4th 1205, 1216].) ۞Any defects must either appear on the face of the pleading, or else be taken by judicial notice. (Id. at 321-22.)

The parties’ ability to prove their respective claims is of no concern. (Cloud, supra, 67 Cal.App.4th 995 at 999.) Though the Court must accept the allegations of the complaint and answer as true (Gerawan Farming, Inc. v. Lyons (2000) 24 Cal.4th 468, 515), it will not do so for “conclusions of law or fact, opinions, speculation, or allegations contrary to law or [judicially noticed] facts....” (Stevenson Real Estate Servs., Inc. v. CB Richard Ellis Real Estate Servs., Inc. (2006) 138 Cal.App.4th 1215,

DISCUSSION

Defendant

contends that the Complaint fails as a matter of law because (1) Plaintiff lacks standing and (2) the causes of action fail to meet the liability requirements under the Song-Beverly Act.

Meet and Confer

Generally, before filing a judgment on the pleadings pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by videoconference with the party who filed the pleading that is subject to the motion for judgment on the pleadings for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the motion for judgment on the pleadings...” (Code Civ. Proc., § 439, subd. (a).)

Defendant submits the declaration of its counsel of record, Vanessa S. Vittorio, attesting to meeting and conferring with Plaintiff’s counsel, Yoseph Rixit, telephonically on February 26, 2026. (Vittorio Decl., ¶¶4-5, 7, Ex. 2.) The parties were unable to reach an agreement on the issues now raised in this motion. (Id.) Accordingly, the Court finds that Defendant fulfilled the meet and confer requirement.

Standing

“Under California law, ‘every sale of consumer goods that are sold at retail in this state shall be accompanied by the manufacturer’s and the retail seller’s implied warranty that the goods are merchantable.’” (Becerra v. General Motors LLC (S.D. Cal. 2017) 241 F.Supp.3d 1094, 1113.) “The Song-Beverly Consumer Warranty Act provides buyers of new motor vehicles with specific remedies when a vehicle turns out to be defective.” (Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, 195.) “Section 1793.22, subdivision (e)(2) defines ‘new motor vehicle’ to include a new vehicle ‘bought or used primarily for personal’ purposes as well as ‘a dealer-owned vehicle and a “demonstrator” or other motor vehicle sold with a manufacturer’s new car warranty.’ ” (Id.) The manufacturer’s new car warranty must be issued with the sale of the used good in order for the

manufacturer to be held liable under the Song-Beverly Act. (Ibid.) “A manufacturer is an entity ‘that manufactures, assembles, or produces consumer goods.’ (§ 1791, subd. (j).)” (Ruiz Nunez v. FCA US LLC (2021) 61 Cal.App.5th 385, 398.) “A distributor is an entity ‘that stands between the manufacturer and the retail seller in purchases, consignments, or contracts for sale of consumer goods.’ (§ 1791, subd. (e).)” (Id.) “A seller or retailer is an entity ‘that engages in the business of selling or leasing consumer goods to retail buyers.’ (§ 1791, subd. (l).)” (Id.)

“Notwithstanding the provisions of subdivision

(a) of Section 1791 defining consumer goods to mean ‘new’ goods, the obligation of a distributor or retail seller of used consumer goods in a sale in which an express warranty is given shall be the same as that imposed on manufacturers under this chapter except: [¶] (a) It shall be the obligation of the distributor or retail seller making express warranties with respect to used consumer goods (and not the original manufacturer, distributor, or retail seller making express warranties with respect to such goods when new) to maintain sufficient service and repair facilities within this state to carry out the terms of such express warranties. (§ 1795.5, subd. (a).)” (Kiluk v. Mercedes-Benz USA, LLC (2019) 43 Cal.App.5th 334, 339.) “But the assumption baked into section 1795.5 is that the manufacturer and the distributor/retailer are distinct entities. Where the manufacturer sells directly to the public, however, it takes on the role of a retailer.” (Id. at 340.)

The Complaint alleges, inter alia, that Defendant designs, manufactures, constructs, assembles, markets, distributes, and sells motor vehicles and components. (Compl., ¶2.) On or about September 29, 2023, Plaintiff purchased a certified pre-owned 2021 BMW X4M, VIN: 5YMUJ0C08M9F10814 (the “Vehicle”) from Defendant’s authorized dealership for personal, family, and/or household purposes. (Id., ¶5.) Defendant provided an express written warranty relating to the Vehicle. (Id.)

Taking these allegations and judicially noticed RISC as true, the Complaint appears to allege that the Vehicle is a “used” vehicle. In fact, the Complaint fails to allege that the Vehicle was sold with a new car warranty issued by Defendant to show that the Vehicle was a “new motor vehicle” and that Defendant is liable under Civil Code Section 1793.22, subdivision (e)(2). Although a manufacturer may still be liable for a “used” vehicle, the Complaint merely alleges in a conclusory manner that Defendant is a distributor/seller of motor vehicles and

components. (Complt., ¶¶4,6, 8.) Such allegations are insufficient to support that Defendant took on the role of distributor/retailer, which would make Defendant liable for the sale of “used” goods under Civil Code Section 1795.5. Unlike in Kiluk, the Complaint does not allege that Defendant partnered with a specific dealership to distribute and sell used vehicles directly to the public with an express warranty as part of any said sales packages. However, this is a defect that can be corrected by amendment. (Opp. at 9:9-10:3.)

CONCLUSION AND ORDER

Defendant BMW of North America, LLC's motion for judgment on the pleadings is granted with 20 days leave to amend.

Defendant BMW of North America, LLC shall provide notice of this order.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court's website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.

Hon. Lee S. Arian

Judge of the Superior Court